

Ishtkar Ali v. State of U.P.

Allahabad High Court · Division Bench · 7 February 2023 · WRIT - C No. 32501 of 2022 · **Writ disposed; petitioner relegated to Para 6.5 objection**

HEADNOTE

On a preliminary objection that Para 6.5 of the U.P. Electricity Supply Code, 2005 affords a remedy to dispute or correct an electricity bill, the Division Bench disposed of the writ without examining merits and granted liberty to file a clause 6.5 objection before respondent No. 4 within four weeks, to be decided within the next four weeks after hearing.

FACTUAL SUMMARY

Ishtkar Ali filed a writ petition in the Allahabad High Court against the State of Uttar Pradesh and others, including the distribution licensee, concerning an electricity bill. Counsel for the licensee (respondents 2 to 4) objected that the petition was not maintainable because Para 6.5 of the U.P. Electricity Supply Code, 2005 provided a remedy to raise all disputes regarding the bill or to seek its correction. Counsel for the petitioner, the State, and the licensee were heard.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing dispute — alternate remedy under clause 6.5

HOLDING

A writ raising a dispute regarding an electricity bill or seeking its correction is disposed of without opinion on merits where Para 6.5 of the U.P. Electricity Supply Code, 2005 affords a remedy. The consumer was given liberty to submit an objection under Para 6.5 before respondent No. 4 within four weeks; if so submitted, it shall be decided in accordance with law within the next four weeks after a reasonable opportunity of hearing.

¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The Court accepted the licensee's maintainability objection and disposed of the writ by relegating the consumer to a Para 6.5 objection instead of examining the bill on the writ side. ¶ 1

clause-6.5-statutory-remedy-disputed-bill Para 6.5 was treated as the statutory forum for all disputes regarding the electricity bill or its correction. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE PETITIONER'S BILLING DISPUTE

The Court expressly declined to express any opinion on merits; respondent No. 4 is to decide the clause 6.5 objection in accordance with law. ¶ 1